

Court No. - 3

Case :- WRIT - C No. - 27905 of 2008

Petitioner :- Smt. Rani Agrawal & Others

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Shravan Kumar Tripathi

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Heard Sri Mayank Agrawal for the petitioner and Sri Shravan Kumar Tripathi for Electricity Board.

Sri Shravan Kumar Tripathi, learned counsel for the respondent submits that counter affidavit was filed way back sometime in the year 2008 which is not on record.

Registry to trace out the same and attach with the file. In case Registry is unable to trace the same, it may contact counsel for the respondent for the needful.

List this case on 10.12.2018.

Order Date :- 16.11.2018

AKK/Ajit

Court No. - 39

Case :- WRIT - C No. - 27905 of 2008

Petitioner :- Smt. Rani Agrawal & Others

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Mahesh Chandra Agrawal, Mayank Agrawal

Counsel for Respondent :- Rajesh Tripathi, Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

Passed over on the illness slip of Sri Mayank Agrawal, learned counsel for the petitioner.

Order Date :- 10.12.2018

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Court No. - 39

Case :- WRIT - C No. - 27905 of 2008

Petitioner :- Smt. Rani Agrawal & Others

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Mahesh Chandra Agrawal, Mayank Agrawal

Counsel for Respondent :- Rajesh Tripathi, Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

On 10.12.2018 this case was adjourned on the illness slip of Sri Mayank Agrawal, learned counsel for the petitioners. Today again an illness slip has been sent by Sri Mayank Agrawal.

This is a writ petition of 2008.

List peremptorily in the next cause list.

Order Date :- 17.12.2018

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Court No. - 32

Case :- WRIT - C No. - 27905 of 2008

Petitioner :- Smt. Rani Agrawal & Others

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & Others

Counsel for Petitioner :- Mahesh Chandra Agrawal, Mayank Agrawal

Counsel for Respondent :- Rajesh Tripathi, Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pradeep Kumar Srivastava, J.

Heard Sri Mahesh Chandra Agrawal, learned counsel for the petitioners and Sri Sharwan Kumar Tripathi, learned counsel for the respondents. Perused the record.

By this petition, learned counsel for the petitioners has prayed for the following reliefs:

a. To issue a writ, order or direction in the nature of certiorari quashing the order dated 31.12.2007 for realization of minimum consumption charges for the period from October 2006 to August 2007 against the petitioners;

b. to issue a writ, order or direction in the nature of certiorari quashing the order dated 28. 04.2008 passed by respondent no. 1 for realization of minimum consumption charges from the Saw Mill owners including the petitioners;

c. to issue a writ, order or direction in the nature of mandamus directing the respondents not to realize minimum consumption charges from the petitioners from 23.09.2006 to August 2007 during which supply was disconnected pursuant to Apex Court order;

d. to issue any other writ, order or direction which this Court may deem fit and proper in the facts and circumstances of the case.

Submission of learned counsel for the petitioners is that respondents are not entitled to claim minimum charges during the period the petitioners were not supplied single unit of electrical energy and the petitioners cannot be penalized for no fault on their part. Further submission is that despite order of Hon'ble Apex Court respondents are pressurizing the petitioners to realize minimum consumption charges during the period supply was disconnected i.e. from October 2006 to August 2007.

Per contra, learned counsel for the respondents has submitted that since petitioners' electricity connections were not permanently disconnected, therefore, their temporary disconnection shall be treated at par for which he shall be liable to pay minimum consumption charges as contained under clause 4.37 of Electricity Supply Code, 2005.

Having heard the submissions of learned counsel for the parties and going

through the record, we are of the view that the petition involves the disputed questions of fact which cannot be decided in writ jurisdiction. However, it is provided that if the petitioners move an application/representation before the Appropriate Authority/Consumer Forum ventilating their grievances within a period of two weeks from today along with certified copy of this order, the authority concerned shall decide the same by a reasoned and speaking order within a period of four months. It is also provided that if such application is moved within time, the authority concerned shall decide the application/representation without looking into the question of limitation.

With the above observations, the petition is finally **disposed** of.

Order Date :- 2.1.2019

RCT/-